

SENATE BILL 2728

By Walley

AN ACT to amend Chapter 350 of the Private Acts of 1945; as amended by Chapter 246 of the Private Acts of 1974; and any other acts amendatory thereto, relative to the county attorney of Haywood County.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF TENNESSEE:

SECTION 1. Chapter 350 of the Private Acts of 1945, and any acts amendatory thereto, is amended by deleting Sections 2 and 3 and substituting:

SECTION 2. The County Attorney shall be licensed to practice law in the State of Tennessee.

Preference must be given to an attorney who is a resident citizen of Haywood County; however, residency within the county shall not be required.

Before assuming office, the County Attorney shall take and subscribe the following oath, which shall be filed with the County Clerk: "I, _____, do solemnly swear that I will support the Constitutions of the United States and of the State of Tennessee, and that I will perform the duties of said office according to the law and to the best of my skill and ability."

SECTION 3. The County Attorney shall serve as legal counsel to Haywood County government and shall advise and represent members of the County Commission, the County Mayor, and other county officials, including elected, appointed, or confirmed officials and chairs of boards and commissions serving the county government on legal matters relating to the performance of their official duties. The County Attorney shall prepare and render written legal opinions to county officials. The County Attorney shall give legal advice to the County Mayor and to the County Commission regarding the issuance and sale of county bonds and shall prepare and execute all necessary legal papers pertaining thereto when requested by the County

Mayor or the County Commission. In the event of conflicting requests among county officials, the County Attorney shall act in the best interest of Haywood County.

SECTION 2. Chapter 350 of the Private Acts of 1945, as amended by Chapter 246 of the Private Acts of 1974, and any acts amendatory thereto, is amended by adding the following new section:

SECTION 9. The County Commission may employ legal counsel other than, or in addition to, the County Attorney when such additional or specialized counsel is deemed necessary or appropriate.

SECTION 3. Chapter 350 of the Private Acts of 1945, as amended by Chapter 246 of the Private Acts of 1974, and any acts amendatory thereto, is amended by deleting "Quarterly County Court" wherever it appears and substituting "County Commission" and by deleting "County Judge" wherever it appears and substituting "County Mayor".

SECTION 4. This act shall have no effect unless it is approved by a two-thirds (2/3) vote of the legislative body of Haywood County. Its approval or nonapproval shall be proclaimed by the presiding officer of the legislative body and certified to the Secretary of State.

SECTION 5. For the purpose of approving or rejecting the provisions of this act, this act shall take effect upon becoming a law, the public welfare requiring it. For all other purposes, it shall take effect as provided in Section 4.